

How does the EU's Deforestation Regulation make documented production history a condition of market admissibility, and to what extent can this be understood as constituting commodities as objects of governance?

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European Studies:
Politics, Societies and Cultures
Bachelor's Thesis
15 cr.
Spring / 2026
Supervisor: Inge Eriksson
Word count: 13,676

Abstract

This thesis asks how the EU Deforestation Regulation (EUDR) makes documented production history a condition of market admissibility, and to what extent this can be understood as constituting commodities as objects of governance.

Under the EUDR, relevant commodities may circulate in the EU market only if three conditions are met: they are deforestation-free, they were produced in accordance with the law of the country of production, and a due diligence statement covers them. Following Regulation (EU) 2025/2650, the required documentary form is graded by actor. Qualifying micro and small primary operators established in low-risk countries may file a one-time simplified declaration under Article 4a, giving a postal address in place of plot coordinates. Production history therefore becomes part of what a commodity must carry to circulate lawfully.

The analysis is a single-case interpretive close reading, structured by Foucault's concepts of governmentality and apparatus and operationalised through Dean's four dimensions of visibility, knowledge, technique and identity. It follows the mechanism through five layers: the definitions in Article 2 and Annex I; the admissibility conditions in Articles 3, 4, and 4a; the due diligence sequence in Articles 8 to 11; the country benchmarking system in Article 29; and the information system in Article 33.

Read through Scott's concept of legibility, the same documentary forms that make production history governable also limit what the regulation reaches. Landscape-scale dynamics enter only indirectly, as risk context, and vegetation falling below the regulation's forest definition, including much of the Brazilian Cerrado, lies outside its deforestation-free trigger. These limits follow from the regulation's unit of visibility and its definition of forest rather than from weak enforcement. The design is finally read as displaying the features of weak ecological modernisation.

Keywords: EUDR; governmentality; apparatus; market admissibility; documentary governance; legibility; EU regulatory power

Table of Contents

Abstract **2**
Table of Contents **3**
List of Abbreviations **5**
Chapter 1: Introduction **6**
1.1 The Research Problem 6
1.2 Research Question and Argument 7
1.3 Case Selection 8
1.4 Structure 8
Chapter 2: Literature Review – The EU as a Regulatory Power **9**
2.1 The EU as a Global Regulatory Power 9
2.2 Governing Production Processes Through Trade 10
2.3 Scholarship on the EUDR 12
2.4 The Gap This Thesis Addresses 12
Chapter 3: Theoretical Framework – Governmentality and the Analytics of Government **14**
3.1 Governmentality: Governing Through Knowledge 14
3.2 The Apparatus: How a Governing Rationality Takes Material Form 15
3.3 Dean's Analytics of Government: The Grid for the Analysis 16
3.4 The Auxiliary Concept: The Documented Production Biography 16
3.5 The Critical Lens: Legibility 18
3.6 An Analytical Criterion for Documentary Constitution 18
Chapter 4: Methodology **20**
4.1 An Interpretive Close Reading 20
4.2 The Single-Case Design 22
4.3 Sources 22
4.4 Scope and Limitations 23
Chapter 5: Analysis – The EUDR as a Documentary Admissibility Apparatus **24**
5.1 The Design Choice: Operator-Led Documentary Governance 25
5.2 Defining the Governed Field: Article 2 and Annex I 26
5.3 The Admissibility Condition: Articles 3, 4 and 4a 28
5.4 The Due Diligence Sequence: Articles 8–11 30
5.5 Differentiating the Field: Article 29 Benchmarking 32
5.6 The Infrastructure: Article 33 and the Information System 33
5.7 What This Makes the Commodity 35
Chapter 6: The Limits of Legibility **37**
6.1 From Achievement to Limit 37
6.2 First Exclusion: Landscape-Level and Cumulative Dynamics 37
6.3 Second Exclusion: The Definitional Boundary and the Cerrado 38
6.4 Why These Exclusions Are Structural 40
6.5 Normative Assessment: Weak Ecological Modernisation 41

Chapter 7: Conclusion **43**
7.1 The Answer to the Research Question 43
7.2 Evaluation of the Thesis 43
7.3 Future Research 44
References **46**
Primary Sources – EU Legislative and Policy Texts 46
Secondary Sources 47

List of Abbreviations

ABIOVE – Associação Brasileira das Indústrias de Óleos Vegetais (Brazilian Association of Vegetable Oil Industries)

CADE – Conselho Administrativo de Defesa Econômica (Brazilian Administrative Council for Economic Defence)

CN – Combined Nomenclature

EUDR – EU Deforestation Regulation (Regulation (EU) 2023/1115)

EUTR – EU Timber Regulation (Regulation (EU) No 995/2010)

FAO – Food and Agriculture Organization of the United Nations

GIS – Geographic Information System

HS – Harmonized System

SWD – Commission Staff Working Document

WTO – World Trade Organization

Chapter 1: Introduction

1.1 The Research Problem

A container ship arrives at Rotterdam carrying soy from Brazil. Before the EU's Deforestation Regulation became relevant, soy was treated in the EU market law primarily on the basis of its present properties: commodity grade, moisture content, protein concentration, and phytosanitary certification. Questioning where it was grown, on what land, with what consequences for the vegetation cover of the territory it came from, was legally irrelevant to its admissibility in the EU market. The soy was to be defined by what it is at the moment of exchange, not by what happened before it arrived.

The EUDR changes the conditions under which such commodities may enter the EU market. An operator placing soy on the EU market – or cattle, palm oil, cocoa, coffee, rubber, wood, or products made from these – must now do three things in order to place the goods on the market. Firstly, the operator must collect the information on the production of the relevant goods, such as the geolocation of each plot that grew the commodity. They must assess the risk that the goods come from land deforested after 31 December 2020, or were produced illegally under the producer country's own laws. And they must submit a due diligence statement to an EU information system, or, for qualifying micro and small primary operators established in low-risk countries, the one-time simplified declaration under Article 4a (Regulation (EU) 2023/1115, Articles 3, 4, 8–11, 33).

The requirements will apply as of 30 December 2026 for large and medium operators, and for micro and small operators already covered by the EU Timber Regulation, other micro and small operators follow as of 30 June 2027 (Regulation (EU) 2025/2650). The revised regime additionally differentiates the obligations according to the actor's role. The duties of ascertainment for downstream operators and traders are lighter. Moreover, qualifying small primary operators in low-risk countries may replace shipment-by-shipment statements with a single declaration giving a postal address in place of plot coordinates, where that address corresponds to the location concerned (Article 4a, as inserted by Regulation (EU) 2025/2650).

Briefly put, the commodity must now carry its production history. Its legal admissibility in the EU depends partly on what happened to the land it came from, which is recorded in a prescribed documentary form and checkable by the authorities. The verification process is defined by institutions: Member States designate competent authorities to verify compliance (Article 14),

and customs check documentary status at the border (Article 26). That is to say, the soy in Rotterdam is passed through the documentary status recorded in the information system, not through inspection of its physical characteristics, none of which could reveal the land-use history that now conditions its admission.

Soy grown on deforested land is physically indistinguishable from soy grown on old farmland, so the harm addressed is not visible in the product, it lies in the production process itself. However, trade measures that discriminate on the basis of the production process are contested in international trade law (Howse & Regan, 2000, pp. 249–253). The EUDR does not ban products by origin but makes a documented production history a condition of entry. The thesis analyses what that answer does to the commodity as an object of governance, rather than to deforestation rates, which cannot yet be measured. The question sits within European studies' concern with the EU as a regulatory power: a polity that acts on the world mainly by setting the conditions of access to its market (Bradford, 2020; Damro, 2012).

Thus, the analytical issue this thesis explores is a particular mode of power. The EU governs distant production without commanding it. If admissibility can be made contingent on documentation, it means that the EU largely governs production in other jurisdictions not by explicitly banning it but rather by specifying what its own market will consider a lawful object. The thesis investigates how that redefinition is legally constructed, and what it can and cannot reach.

1.2 Research Question and Argument

How does the EU's Deforestation Regulation make documented production history a condition of market admissibility, and to what extent can this be understood as constituting commodities as objects of governance?

The aim has two parts. First, it provides a detailed account of the regulation's documentary machinery, an object-level question not foregrounded in the literature reviewed here; second, it offers a defensible way of deciding what this machinery makes of what it regulates. The following two sub questions aid in structuring the answer.

SQ1: Through which legal provisions and documentary requirements does the EUDR make production history legally operative, and what does this make of the commodity as a market object?

SQ2: What is excluded from the direct governance of this mechanism, and which of these exclusions are caused by the regulatory design and not the implementation?

Succinctly put, the argument is as follows. The EUDR is better interpreted not as a regulation that confines a finished object but rather as a framework that alters the nature of the commodity that must be administratively devised in order for it to circulate lawfully on the EU market: an object that comes with a documented and operator-attested account of its production past, subject to later regulatory checking. The thesis refers to this record as the documented production biography of the commodity (definition provided in Section 3.4). The documentary forms that make production history governable also set hard limits on what can be governed, which are examined in Chapter 6.

1.3 Case Selection

The thesis is a single-case study of the EUDR, chosen as a particularly developed and analytically clear instance of the phenomenon: it attaches market admissibility to documented production history in unusually concrete terms, and with an unusually complete public record of its design reasoning. The methodological grounds for the single-case design, the alternatives considered and the limits of the choice are set out in Chapter 4.

1.4 Structure

In Chapter 2 the literature review is presented and aims to identify the gaps. Chapter 3 delineates a framework that includes governmentality and the concept of the apparatus, operationalised by Dean's four questions alongside one auxiliary concept and one critical lens. Chapter 4 covers the methods and sources used. Chapter 5 conducts a close reading and answers SQ1; Chapter 6 answers SQ2; Chapter 7 concludes the thesis.

Chapter 2: Literature Review – The EU as a Regulatory Power

This chapter contextualises the thesis within the literature on the EU's regulatory power (2.1), on governing production processes via trade (2.2), and on the EUDR itself (2.3), before identifying the gap it works to fill (2.4).

2.1 The EU as a Global Regulatory Power

A fair amount of literature argues that the international power of the EU is regulatory as opposed to military or diplomatic. Damro (2012, pp. 682–683) encapsulates this in "Market Power Europe": the EU is essentially a large single market; the EU has important institutional features; various competing interest groups are present in the EU; the EU exercises power by externalising market-related policies and regulatory measures. The EU does not need to persuade or coerce other states directly; it defines the conditions of entry to its own market, and others adjust.

As Damro (2012) and Bradford (2020) argue, the EU can create rules for nations beyond Europe and enforce compliance. Producer nations have pushed back, seeing the EUDR as an environmental measure designed in Brussels and paid for abroad. Concerns extend beyond trade impacts alone. Nesadurai (2026) views the dispute as a contest over authority, in which rule-takers challenge the EU's authority to legislate for land use outside its borders, with Malaysia and Indonesia as the main cases. So far, the EUDR has not faced a formal dispute at the World Trade Organization (WTO). For instance, the cases Indonesia and Malaysia brought at the WTO involve the EU's renewable-energy rules for palm-oil biofuels, a different measure (World Trade Organization, n.d.). The difference matters: the contest so far has been political rather than judicial.

The market power of the EU receives counter-power, that is, the ability of large producer economies to challenge the EU's terms. The delays should not be interpreted as a result of that pressure as the first postponement was principally traced to inadequate technical guidance (Nesadurai, 2026). The claims were not adjudicated in this thesis, as WTO compatibility is out of scope; but the dispute is taken as evidence for the asymmetry developed in Chapter 6: the documentary burdens fall on producers outside the polity that designed them.

The externalisation that Bradford (2020) develops is the best-known account. According to her "Brussels Effect", the market size and regulatory capacity of the EU, the stringency of its

standards, the inelasticity of its regulatory targets and the non-divisibility of production can together lead firms to extend EU standards to the rest of the world instead of maintaining separate lines. The account explains why EU standards travel; it does not explore the internal design of any one regulation, which is what this thesis does.

Earlier work on "trading up" by Vogel (1995, pp. 5–8) offers the historical background for both narratives. According to Vogel, access to large and capitalised, highly-regulated, and wealthy markets can pull foreign producers to the higher rather than the lower standard.

J. Scott (2014, pp. 90–94) provides the vocabulary for the sense in which the EU reaches beyond its borders without legislating for other territories. He distinguishes extraterritoriality, where a law applies directly to conduct abroad, from territorial extension. The latter is the case where a law applies to conduct with a territorial connection to the EU, but that conduct is to be assessed in the light of things that happened abroad. The EUDR is a clear case in point: the regulated act under the law is the placing of a commodity on the EU market, but its lawfulness depends on the land-use history in the country of production.

As a whole, the literature shows that the EU governs globally through market access; nevertheless, it largely omits examination of the machinery inside a given regulation: the definitions, documentary requirements and information systems through which access is permitted or denied. This thesis studies that machinery as its object.

2.2 Governing Production Processes Through Trade

The EUDR regulates something that is not visible in the product, as the relevant difference between compliant and non-compliant soy is the production process. A second set of literature discusses what problems this creates.

Within trade law, there has long been a contestation of measures that differentiate products by reference to how they are produced — the so-called process-based measures. According to Howse and Regan (2000, pp. 249–253), the orthodox position that measures of this sort should be treated as presumptively protectionist is analytically wrong. The regulator seeking to govern production processes by regulating trade has to carefully select its legal form because of the burden of their argument. An answer to that question is the documentary design of the EUDR.

A relevant literature reviews the supply chains under documentary standards. The article written by Ponte and Gibbon (2005, pp. 9–12) shows that standards which require documentary

verification concentrate coordination power in actors that are best able to manage information, while marginalising others. Their research concerned private, buyer-driven standards, but the mechanism is equally applicable to public regulation and returns in Chapter 6.

Three adjacent literatures speak more directly still to the mechanism named here, and each is put to work in Chapter 5. Power (1997) describes the drift of governance toward the audit society, in which what is governed is the verifiable record rather than the activity; that frames the reading of the information system in Section 5.6. Agrawal (2005) demonstrates that in forest governance, technologies of measurement and record-making produce environmental subjects; this informs the study of operator formation in Section 5.4. Espeland and Stevens' (1998) analysis of commensuration makes unlike things comparable through standard categories, which is what Article 2 does to vegetation in Section 5.2. After the previous contributions, the one step that none of them take is the legal one: the point at which a documentary relation becomes a condition of market admissibility, and so bears on the standing of an object rather than the conduct of an actor.

Research on voluntary sustainability governance explains why the EU turned to binding regulation. Lambin et al. (2018, p. 109) document that despite hundreds of corporate zero-deforestation commitments deforestation continued at high rates, and Lambin and Furumo (2023, pp. 241–243) identify the fundamental weakness: voluntary schemes cannot cover producers that do not sign up, allowing deforestation to leak to unmonitored parts of the market. The Commission's impact assessment rejected voluntary options on that basis (European Commission, 2021, pp. 44–45). The EUDR may therefore be understood as a shift from voluntary to binding regulation.

The EU Timber Regulation (Regulation (EU) No 995/2010, the EUTR) is a direct regulatory predecessor of the EUDR in EU law. It obliged operators placing timber on the EU market to exercise due diligence against illegally harvested wood. The EUTR pioneered the due diligence form the EUDR generalises, but it covered only timber and set its standard at legality in the country of harvest rather than deforestation as such: timber harvested legally from converted forest remained admissible. The EUDR repeals and replaces it, extends the design to seven commodities, and shifts the standard to deforestation-free production plus legality. Berning and Sotirov (2023) read this trajectory as a progressive hardening of the same regulatory form; in that lineage the EUDR is not an invention from nothing, but the strongest iteration of a design the EU had been developing for over a decade.

2.3 Scholarship on the EUDR

The academic literature on the EUDR, adopted in 2023 and not yet fully applicable, is relatively recent but rapidly evolving. Most relevant here are several contributions.

Berning and Sotirov (2023, pp. 870–875) analyse the EUDR as a case of "hardening" corporate accountability: it converts what private schemes treated as voluntary commitments into binding obligations backed by penalties and border enforcement. Theirs represents the most closely related existing work. While they ask what the EUDR does to firms' accountability, this thesis asks what it does to the commodity as a legal object.

In commenting on the proposal, Zhunusova et al. (2022, pp. 1–4) caution that uniform due diligence requirements could exclude smallholders, indigenous peoples and local communities from covered supply chains, pushing trade towards larger producers. These are anticipated rather than observed effects, but they matter for Chapter 6.

It is worth stating precisely how this differs from the nearest neighbouring work. For Berning and Sotirov, the salient feature of Article 3 read with Article 4 is that these provisions convert a once-voluntary corporate commitment into a binding obligation on the firm. That reading is correct and fully explains the provision as a duty. The adaptation of Annex I can be seen from the angle of goods being inducted to or released from the regime, without any operator having altered its past behaviour: loss of documentary condition for cattle leather, gain of it for palm-oil soaps. An accountability-centred interpretation outlines a modification in a firm's duties, but what is not made essential is that a regime has redefined what it recognises, i.e., its objects. The two are not rivals but different levels of description: their reading analyses what the regulation does to the actor, this thesis what it does to the object.

2.4 The Gap This Thesis Addresses

The assertion is accordingly modest. The sourced literature was identified by Scopus, Web of Science and HeinOnline, drawing on the regulation's name and number and terms on due diligence, traceability, market access and regulatory power, aided by citation tracking of the EUDR-specific studies discussed above. This chapter has revisited the literatures on audit, commensuration and environmentality, which are then deployed in Chapter 5; the literatures on transparency-infrastructure and traceability are acknowledged, rather than reviewed, with fuller engagement with them remaining a limitation.

Nonetheless, the object-level question was not placed in the foreground. The thesis investigates the impact of the EUDR's documentary architecture on the functioning of commodities in governance. The regulation requires proof of production history for legally trading a commodity in the EU market, an argument developed in the two chapters that follow. This is best understood not as an external constraint on a finished object, but as a change in what the commodity must be, administratively and legally, in order to count as admissible.

Chapter 3: Theoretical Framework – Governmentality and the Analytics of Government

This chapter lays out the analytical framework which is applied in Chapter 5. The framework comprises one main framework (Foucault's governmentality, operationalised through Dean's analytics of government), one auxiliary concept (the documented production biography, built from Kopytoff and Appadurai) and one critical lens (Scott's legibility, introduced here and deployed in Chapter 6). Before application, each component is given a definition. The criterion by which the framework comes to bear on the analysis is set out in Section 3.6.

3.1 Governmentality: Governing Through Knowledge

The concept of governmentality, built upon the works of Foucault, means the governing of people through the shaping of their conduct. In a lecture of 1978, he defines it as the "ensemble formed by institutions, procedures, analyses and reflections, calculations and tactics" through which this power is exercised (Foucault, 1991, p. 102). Two aspects of the definition are significant here.

First, according to Foucault, government in this sense works on "things" as much as on people: "the right disposition of things, arranged so as to lead to a convenient end" (Foucault, 1991, p. 93, quoting La Perrière). In this regard, the EUDR fits this description very closely. It does not constrain farmers from deforesting; it alters the conditions under which commodities and market actors relate, so that deforestation-linked goods are losing their pathway to the EU market.

Secondly, this form of power depends on knowledge. A domain can be governed this way only if it is known – measured, recorded, classified. According to Foucault's historical argument, the modern art of government grew together with statistics, registers and administrative reporting, which made the governed domain visible to authority (Foucault, 1991, pp. 96–100). The most important theoretical point for this thesis is that the EUDR governs deforestation by requiring relevant production knowledge to be assembled, standardised and made administratively available in a legally prescribed form.

Furthermore, according to Foucault it must not be thought that these forms of power emerge in a historical sequence in which government succeeds law and sovereignty. According to Foucault (1991, p. 102) the power of modern states must instead be thought of as a triangle,

sovereignty-discipline-government. The three “coexist; they work through one another.” The point being made is important to the following analysis of the EUDR as an exercise of classic sovereign law-making, Article 3 being a prohibition enacted by a legislature and enforced at a border. This is not to deny the governmentality reading developed above. It investigates the state apparatus that renders the sovereign ban operational, a relationship taken up in the analysis.

3.2 The Apparatus: How a Governing Rationality Takes Material Form

A rationality of government needs machinery. Foucault’s term for this machinery is the apparatus (dispositif): “a thoroughly heterogeneous ensemble consisting of discourses, institutions, architectural forms, regulatory decisions, laws, administrative measures, scientific statements” and more – together with “the system of relations” established between these elements (Foucault, 1980, p. 194). An apparatus is not a singular law or institution; it is the functioning combination of legal texts, procedures, information systems and defined categories through which governing happens. Foucault also mentions a point of functional origin: that the apparatus is established as a response to an urgent need, and has “a dominant strategic function” (Foucault, 1980, p. 195). The EUDR also follows this characterisation. The urgency of the apparatus is highlighted by the impact assessment, which states that a series of voluntary commitments failed over a decade.

The present notion performs the principal descriptive task in Chapter 5. Chapter 5 analyses the EUDR not as a mere list of legal provisions but as an apparatus: the definitions (Article 2), the admissibility condition (Articles 3–4), the due diligence apparatus (Articles 8–11), the country benchmarking apparatus (Article 29), and the information apparatus (Article 33). These all work together to form one governing arrangement.

Due to the fact the EUDR governs conduct far beyond the territory of the EU, one extension is required. Rose and Miller (1992, pp. 173–183) explain that governing programmes operate “at a distance” because their requirements are inscribed in documents and procedures which travel along a chain of actors, each translating the requirement into a form the next can act on. It can be expected that a rationality formulated in Brussels, namely, that of the EUDR can reach a Brazilian soy farm by way of such a chain, whereby the requirements become an importer’s contractual demands, then a trader’s information requests, then a farmer’s obligation to record the plot’s coordinates. This sequence is inferred from the regulatory design rather than

observed empirically. Routine governance does not depend on any EU official inspecting the farm.

3.3 Dean's Analytics of Government: The Grid for the Analysis

In a careful application of Foucault's concepts to a legal text, this thesis uses Dean's "analytics of government" (2010, pp. 40–44): four dimensions along which any regime of practices can be analysed, each used as an explicit analytical question in Chapter 5.

Visibility – what must be made visible for governing to work, and in what form? Applied here to the EUDR's definitions and geolocation requirements: what the regulation forces into view.

Knowledge – what forms of knowledge must be produced, and by what procedures? Applied here to the information and risk-assessment requirements of Articles 9–10.

Technique – through what instruments, procedures and technologies is governing accomplished? Applied here to the due diligence statement, the benchmarking system and the Article 33 information system.

Identity – what kinds of actors, with what duties and capacities, does the regime presuppose and produce? Applied here to the regulation's constitution of "operators" and "traders" as self-governing compliance subjects.

Each analysis section of Chapter 5 explains which of these dimensions it addresses. The theory is "apparent" in the analysis in this concrete sense in that Dean's four questions are the questions the close reading asks of the regulatory text.

An ordinary policy framework is not used because the two ask different questions. The first concern of a policy analyst is whether an instrument can achieve the goals efficiently, whereas a governmentality perspective asks a prior question: what must the world look like for the instrument to work at all? (Dean, 2010, pp. 40–44) In the case of a regulation whose principal obligations have not yet begun to apply, this is something that the textual record can answer, without making claims about effects that cannot yet be seen.

3.4 The Auxiliary Concept: The Documented Production Biography

The EUDR's governing framework is explained by Foucault. It says little about what the regulation does to the commodity as an object for exchange. In this regard, this thesis uses a

concept from economic anthropology which will be defined here because it will be used frequently later on.

Definition. A documented production biography, as defined in this thesis, is the legal record of a commodity's production history, the presence of which is a condition for lawful circulation in the EU market. The record consists of the geolocation of the plots where the commodity was produced, the date range of production, the deforestation status of those plots after the cut-off date of 31 December 2020 and the overall due diligence record after the cut-off date. The revised regulation states that this is not the only admissible form: micro and small primary operators in low-risk third countries may replace the geolocation of the plot in Article 4a by a postal address. In this sense, it is clear that the statement refers to a type of record whose contents the regulation distinguishes, not a single universal document.

The term refers to a distributed documentary relation: information collected and retained in the operator's own records, a declaration submitted centrally to the information system and a reference number, or, under Article 4a, a declaration identifier, linking the two to a product flow. The Regulation does not require a single unified document containing the entire claim.

The concept is borrowed from two things. Kopytoff (1986, pp. 64–68) posits that things have biographies, for the identity of an object depends on how it has been modified over time; Appadurai (1986, pp. 14–15) adds the system-level counterpart, the regime of value, that determines which properties count for exchangeability. A portion of the object's past is inscribed by the EUDR into the EU market's regime of value.

The term is used throughout in this restricted, defined sense. In Kopytoff's ethnographic view, it should not be thought that bulk commodities like soy have individual life stories; what is purposely partial is the borrowing: what is taken is the insight that an object's standing can depend on its history and that it is exchange systems that select which properties count, not the ethnographic device of commoditisation and singularisation. What the term names is the composite documentary record that the regulation attaches to a product flow as a condition of admissibility.

Another term requires definition, for it is the title of Chapter 5. Documentary admissibility names a regulatory form in which market access depends not only on a product's present characteristics but on a legally prescribed documentary account of its production history. The two coined terms operate at different levels: the documentary admissibility names the

mechanism, what the regulation does; the documented production biography names the record attached to the commodity by that mechanism, what the commodity must carry.

3.5 The Critical Lens: Legibility

Having explained how the EUDR governs, that framework does not yet set out to examine what such governance leaves out. Chapter 6 uses James C. Scott's concept of legibility which is introduced here.

According to J. C. Scott (1998, pp. 2–8), state governance first requires simplifying a domain into a form readable by the administration: maps, registers, standard categories and units. The author shows how every simplification misses out on something. Whatever cannot be rendered in the standard form is simply left out of the governed field. This is not an oversight but a deliberate omission (pp. 11–22). When applying this lens in Chapter 6, the main finding is reversed. Chapter 6 closes with a short normative assessment, for which Christoff's (1996) distinction between weak and strong ecological modernisation is used; it is introduced at the point of use because it evaluates the design rather than analyses it.

3.6 An Analytical Criterion for Documentary Constitution

The thesis distinguishes two levels at which the same regulation may operate. At the actor level, law assigns duties to operators and traders. At the object level, it may also determine the conditions under which goods acquire a particular legal-administrative status. These descriptions are not mutually exclusive. The question is whether the second adds explanatory value to the first.

Documentary constitution is therefore used here as an analytical criterion, not as a deductive test capable of proving a uniquely correct description. Constitutive language is warranted where three features coincide: (i) compliance cannot be established from the product's physical characteristics; (ii) lawful market status depends on a legally prescribed relation between the product and its production past; and (iii) absence of the prescribed documentary relation prevents the goods from acquiring admissible status even where their physical characteristics are unchanged. The EUDR satisfies these conditions. Deforestation-free status concerns the production history of the land rather than a physical property of the commodity, and that history must be made administratively available through the documentary pathway prescribed by the

Regulation. Goods lacking the required documentary relation cannot lawfully circulate even if their actual production history would otherwise satisfy the substantive requirements.

The criterion discriminates as much as it includes, and the differences are of degree rather than of kind. A phytosanitary certificate may encode treatment and origin, and a conformity assessment may certify process and quality-management systems; both record a past. What distinguishes them is that the past they record is instrumental to some present property the product can be examined for, whereas under the EUDR that past is itself the regulated fact. A customs declaration is administrative but says nothing about production history, and so does not satisfy the second feature.

“Constitution” is therefore used in a deliberately restricted sense. The EUDR does not constitute the physical commodity or alter its customs classification. It establishes the conditions under which relevant goods acquire legal-administrative admissibility within the EU market. Article 4a qualifies this reading rather than defeating it: the applicable documentary pathway depends partly on actor status, so the constitutive relation is relational and actor-dependent. Section 5.7 evaluates this interpretation against the competing view that the same architecture is sufficiently described as differentiated duties imposed on operators.

Chapter 4: Methodology

4.1 An Interpretive Close Reading

The research question asks whether the documentary design of the regulation can be understood as constituting the objects that the regulation governs. It is a question of meaning and design, not of frequencies or effects, so the method is interpretive: it closely reads the texts and reasons about what their design implies, not measuring effects.

The term "close reading," as used in this context, denotes an analysis that is methodical and proceeds provision by provision. It looks both to what each provision requires as well as what it presupposes and produces: the categories it creates, the knowledge it requires, the actors it defines. The procedure is similar to what Hutchinson and Duncan (2012, pp. 83–86, 101–106) call doctrinal analysis, although it differs in purpose: a doctrinal reading asks what is the law, how a court would apply it, while an interpretive reading asks what the law does, what the governing arrangement is that the text sets up. The legal interpretation is not being claimed to be authoritative by this thesis; it claims an explanation of how the regulation governs that is analytically grounded.

The theoretical framework constrains the close reading, rather than leaving it open-ended. The unique contribution each analytical part of Chapter 5 makes is that they explicitly ask one or more of Dean's four questions (visibility, knowledge, technique, identity defined in Section 3.3) of a specific set of provisions. It is precisely what permits the analysis to be transparent and contestable: a second reader applying the same questions to the same provisions can check whether the answers given here are supported by the text.

The analytical progression articulated in Chapter 5 follows a six-stage pathway.

(1) establishing the ordinary legal function of the provision;

(2) identifying what information, category, procedure or actor it creates;

(3) putting to it the relevant one of Dean's four questions;

(4) deriving the interpretive claim;

(5) stating the actor-centred reading of the same provision; and

(6) giving the reason for preferring the object-centred reading, or else for treating the two as complementary.

This sequence structures the analysis across Chapter 5, although individual sections emphasise different stages depending on the provision examined.

The second method is document analysis of the legislative history. The impact assessment (SWD(2021) 326) is read as the Commission's design rationale at proposal stage: which alternatives were considered and why the documentary architecture was chosen. It is treated not as equal in authority to the regulation, nor is it co-legislators' shared intent.

The essential tenets of interpretive validity rest upon three checks. To begin with, every analytical claim in this thesis' exposition has been anchored in clearly cited provisions or the requisite sources from which any reader can verify it against the original source. Next, as opposed to being demonstrated on selected provisions, the reading in its entirety is subject to coherence test across all five layers of coherence. Finally, the strongest rival reading is engaged on its merits. The analytical provisions were selected from the entire regulation, including the articles on enforcement and customs and the two annexes; provisions having a bearing on the mechanism without carrying it, such as the penalty and substantiated-concern articles, are cited where relevant rather than analysed as layers. Verification is not tantamount to unique correctness, it is, however, a requisite for accountability

4.2 The Single-Case Design

The thesis conducts an in-depth examination of a single case, namely the EUDR. Single-case designs are suitable when the focus is on understanding how something functions within a case instead of estimating an effect across cases. The EUDR is chosen as an information-rich case in Flyvbjerg's (2006, pp. 229–233) sense. It is an especially clear, arguably extreme instance of documentary market conditionality, whose close study might help to recognise comparable mechanisms elsewhere. The applicability of this case to a broader class of cases cannot be established based on this single instance, and remains a hypothesis for Section 7.3. There are three properties that justify the selection: the documentary requirements are unusually extensive making the mechanism observable at fine granularity; the legislative record is unusually complete; and the architecture is fully laid down in adopted texts so analysis is possible well before the regulation applies in full.

The cost of the design is stated plainly, nothing in a single case shows how far the mechanism generalises. The thesis aims to state only that something exists and operates in the EUDR; its presence elsewhere is treated as a hypothesis for comparative research (Section 7.3), not a finding.

4.3 Sources

The primary source material in this case is Regulation (EU) 2023/1115, read with the amending Regulation (EU) 2025/2650. That amendment delayed the application dates, distinguished primary from downstream operators, introduced the Article 4a simplified declaration for qualifying micro and small primary operators in low-risk countries, and restricted the reference-number duty to the first downstream stage. The close reading can be found in Articles 2, 3, 4, 4a, 8–11, 29 and 33. The reason these provisions are selected is that they carry the admissibility mechanism with which the research question is concerned: the definitions, the prohibition and its documentary condition, the due diligence sequence, and the two system-level instruments.

The analysis has been kept up to date with the use of two measures adopted in July 2026, which are the Delegated Act revising the Annex I product scope and the Implementing Act laying down the technical rules of the Article 33 information system (European Commission, 2026a; 2026b). The Commission's impact assessment, SWD(2021) 326, is the primary evidence on design choices. Secondary sources help contextualise and assess the exclusions of a design.

Guidance from the Commission is non-binding soft law, it indicates only how the Commission considers the regulation should be applied and has no binding force. The legislative texts are therefore treated as controlling wherever the two could diverge.

4.4 Scope and Limitations

The effectiveness of the EUDR is not evaluated in the thesis as its principal obligations become applicable on 30 December 2026. Thus, its compliance behaviour, enforcement practice and effect on deforestation cannot yet be observed or evaluated. The thesis does not assess the Regulation's WTO legality; the product/process literature is used to frame the design problem rather than to determine compatibility with WTO law. Empirical illustrations are drawn mainly from Brazilian soy and cattle production for clarity rather than sectoral coverage.

Chapter 5: Analysis – The EUDR as a Documentary Admissibility Apparatus

This chapter responds to the first sub-question, namely: through which provisions does the EUDR render documented production history a condition for market admissibility and what does this make of the commodity? It conceptualises the regulation as a tool and interrogates it with Dean's four questions. Section 5.1 shows that the choice of a documentary design was deliberate; Sections 5.2 to 5.6 follow the apparatus through its five layers; Section 5.7 brings the answer together and confronts the counter-reading. Table 1 maps the five layers that follow onto Dean's four dimensions, serving as a roadmap for the chapter and as a brief summary of the apparatus as a whole.

Table 1. The EUDR as a documentary admissibility apparatus, read through Dean's analytics of government.

Provision	Dean dimension	What the apparatus does
Art. 2 + Annex I	Visibility	Defines what counts as forest, deforestation, relevant commodity, operator and trader – constituting the governable field.
Arts. 3, 4, 4a	Technique	Makes a due diligence statement (or simplified declaration) the condition of market admissibility.
Arts. 8–11	Knowledge + Identity	Requires operators to collect information, assess risk, and mitigate it – producing knowledge and forming self-governing compliance subjects.
Art. 29	Technique (stratifying visibility)	Benchmarks countries by risk, differentiating the documentary burden and extending reach to third-country governance.

Art. 33	Technique (infrastructure)	Provides the information system in which statements are lodged, referenced and checked – the apparatus's material form.

Source: author's construction from Regulation (EU) 2023/1115 as amended by Regulation (EU) 2025/2650, read in light of the Delegated Regulation C(2026) 4920 final, pending scrutiny.

5.1 The Design Choice: Operator-Led Documentary Governance

It is essential to clarify that the design was selected instead of inherited. The Commission assessed the impact of five options in greater detail, including mandatory due diligence, mandatory public certification, mandatory labelling, and a requirement for a deforestation-free market backed by country benchmarking under a card system similar to the EU's illegal-fishing regime (European Commission, 2021, pp. 37–44, 83–84).

What the deliberation shows is not what a casual reading would suggest. Approaches considered as voluntary were ruled out as they had been around for a number of years already, without having stopped deforestation or being able to separate compliant from non-compliant production (European Commission, 2021, pp. 44–45; Lambin et al., 2018, p. 109; Lambin & Furumo, 2023, pp. 241–243). The serious alternative to operator-led documentation was not an undocumented prohibition. The benchmarking-and-carding option was itself thoroughly documentary, for it would have generated public proof, through country classification, official certification and state-level cards, rather than private proof, through the operators themselves. The Commission's preferred option combined a benchmarking system and a list of contravening operators with a tiered improved mandatory due diligence system (European Commission, 2021, p. 84), and the adopted regulation retains both limbs. Every retained option was documentary; what differed was which actors would be responsible for producing the required knowledge.

The Commission's selection consists of Article 3, which contains a substantive prohibition and an operator-led documentary architecture that ensures the prohibition's administrability. The choice's governmental significance is this: instead of building a public certification apparatus, the EU devolved the production, retention and attestation of the required knowledge onto the operators seeking market access, while retaining the definitions, the benchmark and the register. The apparatus analysed in this chapter is the form that devolution takes. According to

Article 3 of the EU Deforestation Regulation, the placement of a commodity will not be prohibited by reference to its origin or type; lawfulness of placement depends on three so-called cumulative conditions that must necessarily all be satisfied.

To be clear, the EUDR is not a governmental tool that replaces sovereign law. Article 3 may appear to be sovereign law in classic form, but the governmentality reading captures the machinery without which it could not function at a global scale. The prohibition provides the apparatus with its legal power and the apparatus, in turn, makes the prohibition administratively operable (Foucault, 1991, p. 102).

5.2 Defining the Governed Field: Article 2 and Annex I

Dean's dimension: visibility – what must be made visible, and in what form?

The regulation begins with the definitions in Article 2, which determine what it sees, and everything that comes after operates within that definitional field.

Article 2(4) defines "forest", on FAO-derived criteria, as land spanning more than 0.5 hectares with trees higher than five metres and a canopy cover of more than ten per cent, or trees able to reach those thresholds in situ, excluding land that is predominantly under agricultural or urban land use. Article 2(3) defines "deforestation" as when forests are converted to agricultural use; for wood products, the deforestation-free definition of Article 2(13) also covers forest degradation occurring after the cut-off date, a branch the analysis notes but does not pursue, since it covers agricultural commodities. The above definitions perform quiet yet consequential actions. Land that meets these thresholds would fall into the forest category of the regulation; vegetation that does not, including extensive areas of Cerrado savanna, falls outside that category and therefore outside the corresponding deforestation trigger, however ecologically important its conversion may be. This is about the trigger, not the reach of the regulation as a whole; relevant commodities produced on such land will remain in the broader regime.

In this regard, the point is analytical, the apparatus does not find forests in the world but defines what will count as forest for its purposes, and thereby which land-use histories become visible to governance at all. According to Espeland and Stevens (1998), commensuration is the process of putting unlike things on a common measure. Article 2 does this precisely to vegetation so that crown cover, height and area become the terms in which ecologically different landscapes are made administratively the same; the residue of that operation is examined in Chapter 6.

This is true for time as well. Under Article 2(13), the cut-off date is fixed as 31 December 2020. It is possible that the land cleared in November, 2020, and then in February, 2021, may be ecologically indistinguishable, yet only one will be able to generate compliant commodities. In order to govern through documentation, the baseline against which documents are checked is set by regulation, like the definitions, rather than found in the landscape.

The "operator" is defined by Article 2(15) as anyone placing relevant commodities or products on the EU market, or exporting them, in the course of commercial activity. The "trader" is defined by Article 2(17) as anyone else in the supply chain who makes such products available. Regulation (EU) 2025/2650 further distinguishes the micro or small primary operator (Article 2(15a)) from the downstream operator (Article 2(15b)), and its amended definition of trader expressly excludes both operators and downstream operators. These do not describe pre-existing actors. Operator identities are regulatory ones: to be an operator is to carry a specific set of duties: information collection, risk assessment, statement submission, and liability. Here the identity work of the regulation begins, although in Table 1 this layer is assigned to visibility, with definition being its main operation; the identity dimension is developed below.

While writing the thesis, the scope definitions were modified, and the modification itself is analytically instructive. The Commission adopted a Delegated Regulation, C(2026) 4920 final, on 13 July 2026, revising Annex I on the basis of a methodology set out in a staff working document (European Commission, 2026a; 2026c). Several removals will be imposed including cattle hides, skins and leather (headings 4101, 4104 and 4107) and retreaded tyres will be deleted. Moreover, other products will be added from 30 December 2027, including coffee extracts and additional palm-oil derivatives; the oil-palm origin qualification applies to the relevant palm-derived entries.

In this thesis, the form of these changes is more important than their content. A definitional act can change the object of governance: a good can be written into or out of the apparatus's field of vision without any change to the good. Prior to the amendment, cattle leather was scheduled to fall into the documentary regime when the obligations became applicable at the end of 2026; now, under the new Annex I, if it survives scrutiny, it will fall outside that prospective field: the leather remains physically unchanged, while its regulatory position changes. As a result, the regulation governs not the physical object but the object as defined.

In an administrative setting, this highlights Appadurai's argument. If a regime of value describes the characteristics that affect a thing's exchangeability, as Appadurai has it (1986,

pp. 14–15), then Annex I is where that set of regulatory classifications is formally specified, and where it is revised. The leather remains constant; what varies is whether the EU market demands it after its production period. At the time of writing, the Delegated Regulation is going through the two-month scrutiny period the European Parliament and the Council undertake before its entry into application.

5.3 The Admissibility Condition: Articles 3, 4 and 4a

Dean's dimension: technique – through what instrument is governing accomplished?

Article 3 establishes that all relevant commodities and products may be placed, made available in or exported from the EU market only if three conditions are met. They must be deforestation-free. They must have been produced pursuant to the laws of the country of production. They must also be covered by a due diligence statement or, for qualifying micro and small primary operators in a low-risk country, by the one-time simplified declaration under Article 4a, subject to the conditions of that provision.

The third condition changes how the first two are made administratively operative. Being deforestation-free is a fact about the land and legal production a fact about the conduct; neither can be read off the commodity at the border, since compliant and non-compliant soy are physically identical. The statement represents the technique that resolves this issue, as it converts factual information about distant locations and past behaviour into a present, verifiable document. This document is submitted to the information system under Article 4(2) prior to the placing on the market of the goods. The operator takes responsibility for the veracity of the statement in accordance with Article 4(3). As stated in Annex II, these are the details that must be contained in the statement — the identification details of the operator, the description, volume and the Harmonized System Code of the products offered and cited in the application, country of production, geolocation of the relevant plots, and the due diligence statement exercised with a finding of no or only negligible risk (Annex II, read with Article 4(2)). The operator must retain the Article 9 information for five years and make it available to the authorities on request; the wider due-diligence documentation is likewise subject to the Regulation's record-retention requirements (Articles 9(1)-(2) and 12(5)).

As the statement is a non-authorisation, it does not confer substantive compliance. Since the requirements in Article 3 are cumulative, goods from land that was deforested after 2020 will remain unlawful, no matter how complete the covering statement is. Essentially, it provides the

independently necessary documentary condition, with the operator's conclusion being something that an authority can act on. Because the production biography is documented, it is distributed between the statement and records it certifies and enters the sphere of economic operation (that is, enters the market) through the statement.

The nuts and bolts are important. When the statement is submitted, an information system assigns to it a reference number that links the product flow to the upstream statement at customs and the first downstream stage. The revised architecture is not an unbroken chain but narrower: the operator lodging the statement passes the number to the first downstream operator or trader, who must collect and keep it, but is not to transmit it through each subsequent transaction (Regulation (EU) 2025/2650). Compliance status is a documented attribute that will follow a product on the flow of goods as it enters the market and at its first onward stage. This attribute is like a grade or origin certificate. But it is not descriptive of quality instead it has to do with the question of admissibility. When they receive the document, they do not travel onward with the document; rather they travel onward with the satisfaction of the documentary condition supplied by its submission, which is one of the three cumulative conditions found in Article 3. It is not a certification that the other two requirements have been satisfied.

This is where the concept defined in Chapter 3 goes into action. The due diligence statement is the legal document that activates the commodity's documented production history upon entry into the market. Under Article 3, admissibility of the commodity relates to properties belonging to its past, not to the present: where was it grown, when, on what land, with what documented risk profile. The qualifier is essential: what the regulation requires before admission is not an independently verified history but a documented history, certified by the operator under its own responsibility and subsequently verifiable by the authorities. The device governs by transferring the regulated operator's first act of assessment and attestation to the regulated operator, leaving later verification to competent authorities.

According to Appadurai, the regulation modifies the EU market regime for these goods. The exchangeability property set now includes a documented past (pp. 14–15). According to Kopytoff (1986, pp. 64–68), the commodity phase of the object's biography is closed off to the object in the EU unless the flow of the product is covered by the prescribed documentary relation.

5.4 The Due Diligence Sequence: Articles 8–11

Dean's dimensions: knowledge – what must be known, and by what procedures? – and identity – what kinds of subjects does the regime produce?

Articles 8–11 provide the means of making it. Article 8 sets out a three-step process for the exercise: collection of information (Article 9), assessment of risks (Article 10) and mitigation of risks (Article 11), each of which is a requirement for the production of knowledge.

For each relevant product, Article 9(1) requires the operator to collect and keep a description of the goods, including the HS or CN code, the quantity, the country of production, the geolocation of all plots where the commodity was produced, the date or time range of production, supplier and recipient identifiers. The necessary indication is geolocation- the operator must have coordinates for the real plots behind the shipment.

Under Article 10, the operator needs to determine the risk that the Article 3 requirements are not fulfilled. In making the assessment, the operator takes into account the benchmarking classification of the country or region, presence of forests and indigenous peoples, duly justified land-use claims, prevalence of deforestation, complexity of supply chain and risk of mixing up with goods of unidentified origin.

The operational criterion warrants attention. The provision states that the goods may be placed on the market where the operator is satisfied that there is no risk, or only a negligible risk, of non-compliance, with "negligible risk" defined in Article 2(26). The standard gives an important ruling: it is the operator not the authority that determines in the first instance whether the information assembled supports that conclusion and is liable if incorrect. The device sets the margin of doubt acceptable to it in the operator's decision.

Article 11 rounds off this sequence: after the risk has been determined, and if it is more than negligible, mitigation must be undertaken to reduce that to negligible before placement. The statement is the documentary output attesting that the sequence was performed. Qualifying micro and small primary operators in low-risk countries discharge the requirement instead through the one-time Article 4a declaration, which is prospective rather than retrospective: the operator confirms that it will exercise due diligence and will place or export only where no or negligible risk is found.

Two theoretical arguments follow. First, there is a chain of translation (Rose & Miller, 1992, pp. 173–183). The coordinates become risk factors, then assessments, then statements, and

finally entries in an information system customs can check. Each step renders the requirement in a form the next actor can act on.

The design allows the following to be inferred, although it is not yet visible in practice: a soy farmer in Mato Grosso may be asked by her buyer for the coordinates of her fields because they are needed further downstream for the EUDR documentation. No provision directly addresses the farmer in this example. Yet her land has de facto acquired a regulatory quality: it must be mappable and its recent history must be checkable, because a market four thousand kilometres away has redefined what it accepts.

In addition, the sequence effects its subjects. According to Dean's identity dimension, the operator is rendered a self-governing compliance actor; the regulation does not assess risks itself but obliges the operator to know, assess, mitigate and attest, and to carry liability for the result. It regulates the basis of the operator's own formulated self-inspection. The same trend is traceable in forest governance (Agrawal, 2005). Measurement and record-making technologies, he explains, do not simply discipline existing subjects; they also produce environmental subjects, whose relationship with the resource becomes reformulated by the obligation to monitor and report it. The operator of the EUDR is, thus, a subject that owes a duty to know rather than one that is already knowing. The revised system makes this distinction: Regulation (EU) 2025/2650 distinguishes primary from downstream operators and traders and relieves qualifying small primary operators through Article 4a. Thus, the compliance identity is graduated by size, position and location.

This differentiation is directly relevant to the terminology of the thesis. It is tempting to speak of "the" documented production biography as if one uniform record were demanded of every commodity. It is not. A large operator sourcing from a standard-risk country must retain the information and assessment required by the ordinary due diligence pathway. An eligible small primary operator based in a low-risk country may instead use the simplified Article 4a pathway. A downstream operator relies on a reference number that it did not itself generate. The apparatus therefore creates several routes to admissibility, and which route applies depends on the operator. Three propositions must be differentiated clearly. The existence of these routes is evident in the provisions. The interpretation of this thesis is that the different pathways produce distinct documentary routes to the same legal-administrative outcome of admissibility, so the constitutive relation is actor-dependent rather than an intrinsic property of the commodity. The

contending interpretation, taken up in Section 5.7 and not elided here, is that they are instead different duties on operators in respect of a single product class.

A purely object-centred interpretation is most challenged by the Article 4a pathway as any obligations that apply only there seem to accord an operator status as opposed to a product-specific one. It is better to allow it to refine the concept rather than treat it like an exception which one has to tolerate. At the actor level, these are different obligations imposed on different categories of regulated persons. The object-centred question is narrower: what follows from those differentiated duties for the associated product flow? Whichever pathway applies determines the documentary relation that is sufficient for lawful placement of the relevant goods. Article 4a therefore shows that admissibility is relational rather than an intrinsic documentary property of the commodity: actor status determines the applicable pathway, while that pathway forms part of the conditions under which the associated goods may lawfully circulate. This interpretation is assessed against the actor-centred alternative in Section 5.7.

5.5 Differentiating the Field: Article 29 Benchmarking

Dean's dimension: technique – a second instrument, operating on countries rather than shipments.

Article 29 mandates the Commission to categorise countries, or parts thereof, as low-risk, standard-risk or high-risk. The criteria consist of rates of deforestation and forest degradation, expansion of agricultural land, trends in production of relevant commodities as well as the forest governance framework of the country (Article 29(3)-(4)). Both ends of the risk classification may have significant consequences. According to Article 13, low-risk sourcing is eligible for a simplification of the due diligence requirement. The definition of "micro and small primary operator", who may make use of the Article 4a declaration (Regulation (EU) 2025/2650), refers to establishment in a low-risk country. High-risk sourcing raises the minimum rate at which competent authorities must check operators and shipments. Benchmarking thus extends from the inspection rate to the definition of actor categories themselves.

Benchmarking serves a double purpose. The documentary burden is graded, knowledge demands concentrate where the apparatus finds risk, making the system workable at the global scale; and the apparatus is extended from shipments to states, since the ranking's standard is the EU's own conception of acceptable forest governance. J. Scott (2014, pp. 92–94) delineates

the mechanism precisely: the EU does not directly regulate what Brazil or Indonesia does with its land. Rather, it stipulates the documentary conditions under which production there can give rise to admissible goods and now publicly grades those territories' governance. The trade instrument therefore carries an evaluation of third-country governance within it.

The first classification, published in May 2025 (Implementing Regulation (EU) 2025/1093), did not go unchallenged, and the direction of the challenge is instructive because it goes both ways at once. The European Parliament's July 2025 resolution criticised the regulation's methodology, the quality and currency of the data used and granularity of the classification and transparency of its weightings. It advocated for a fourth "negligible risk" category which is missing from the regulation and would ease obligations for certain countries (European Parliament, 2025). The classification will have to be upheld as there is no binding effect of the objection. What it shows is that a classification assembled from heterogeneous criteria invites argument over which criteria should have counted.

5.6 The Infrastructure: Article 33 and the Information System

Dean's dimension: technique – the material infrastructure that makes the documentary system operative.

The Commission has to establish the information system through which the statements and simplified declarations referred to in Article 33 are submitted and made available to competent authorities and customs. Due diligence statements receive reference numbers, while simplified declarations receive declaration identifiers. In this stage, the apparatus takes on a physical shape. The specified framework permits the information system to document the main point through which compliance can be verified; physical examination remains available in the law. The design indicates that the record has control over the centre of gravity, but it does not exercise this control entirely.

As this thesis was being written, the form of the system was fixed. The technical rules contained in Implementing Regulation (EU) 2024/3084, and amended on 13 July 2026 by Implementing Regulation (EU) 2026/1565 (European Commission, 2026b), define the Article 4a declarations, add contingency arrangements, and update the interfaces through which operators make bulk submissions. According to European Commission (2026b; 2026d), the system resumed at the end of June 2026 in advance of application on 30 December 2026 for large and medium operators and 30 June 2027 for most micro and small operators.

It can be easy to overlook this layer as technical. The visibility of the apparatus does not rely upon officials observing production but rather on a data infrastructure into which coordinates and risk conclusions are standardised and placed in digital form for cross-checking. What happens to be governed in the audit society (Power, 1997) is the verifiable record; that is, the record of the activity (Power, 1997). The EUDR is a public-law instance of that drift, and Article 33 is where it becomes infrastructural.

The competent authorities must also ensure that the information submitted is accurate. In relation to geolocation, this may involve checking declared coordinates against independent evidence regarding land cover. The regulation does not prescribe any particular dataset. Voluntary schemes have no systematic monitoring (Lambin & Furumo, 2023, pp. 254–255). In this context, the collection and submission of mandated traceability information is compulsory, while the information system centralises their declarations in order to render them administratively actionable. Simultaneously, the sight of the apparatus is dependent on this infrastructure: what the data formats, coverage and verification demands of the system cannot see, the regulation cannot see either. This dependency is addressed in Section 6.

The same applies to enforcement, which has a similar documentary shape as above; its provisions should be named and not attributed to Article 33. Competent authorities check operators under Articles 16 and 18 at a minimum percentage as foreseen in Article 16(8)-(10) and then weighted by the Article 29 classification; customs check the documentary status under Articles 26 and 27, with a linkage of the reference number to the customs declaration. The checks that these provisions require are essentially record-based. That is, are the geolocation data plausible, does the risk assessment corroborate its conclusion, is the statement matching the goods, including by benchmarking against independent geospatial evidence for the declared plots? Article 18(2) also permits physical examination of the goods and field inspection in cooperation with the relevant country. The present textual analysis does not establish how routinely either form of verification will be used in practice.

A direct consequence of the structure of this infrastructure is one distributional observation. According to Ponte and Gibbon (2005, 9–12), similar to private standards, documentary requirements concentrate power in the actors who best manage information. A firm that already has GIS capabilities and integrated compliance systems will take the EUDR's requirements in its stride. A smallholder with no access to plot mapping is likely to rely on intermediaries at least to be able to stay in the chain (Zhunusova et al., 2022, 3–6). The graduated system

introduced in 2025 acknowledges this asymmetry; whether it neutralises it is an empirical question and lies outside the scope of this thesis.

5.7 What This Makes the Commodity

This section brings together the analysis to answer the first sub-question.. Under the EUDR, documented production history is not merely a piece of paper; it pertains to the commodity that is legally operable. The end product that emerges is no longer merely a specification object within grade, moisture and protein content as were defined Chapter 1 for the pre-EUDR soy; but instead, within the EU regime, the legal circulation of this end product depends on a documented and operator-attested story regarding the land from which it came.

The strongest counter-reading must be stated fairly. In doctrinal terms the EUDR imposes obligations on operators; it does not amend the customs classification or legal definition of soy, or the other commodities. Soy remains soy, so the regulation is an operator-conduct rule with a market-access sanction. That reading is legally correct as far as it goes and is not contested here as doctrine; yet the thesis's claim operates at a different level. The issue at hand is not how the regulatory regime classifies goods but how it governs. At that level the doctrinal reading does not by itself bring out what attaching documentary duties to market admissibility does to the object, which is what the apparatus reading makes analytically central: this is the form in which production processes invisible in the product, contested as grounds for discrimination in trade law (Howse & Regan, 2000, 249–253) can be made governable at all. The physical identity of the commodity remains unmodified; its legal-administrative identity in the EU market does not.

The response is made explicit by the distinction developed in Section 3.6 between the actor level and the object level. The EUDR operates at both levels at once, while the doctrinal reading primarily captures the first: Articles 8 to 11 regulate the operators' conduct, while Article 2 with Annex I, and Article 3 read with Article 4, define a status, the market admissible relevant commodity, and the documentary conditions under which goods have it. What is established is narrower: scope-setting here operates on the same regulatory framework that determines admissibility, so the definitional act and the admissibility condition are two faces of one operation rather than a frame and its contents. Whether or not this warrants the language of constitution is the interpretive question to which this thesis answers affirmatively, though acknowledging that the opposite interpretation is defensible.

Read as an apparatus, the EUDR governs deforestation by changing what a commodity must administratively be in order to circulate lawfully in the EU market: an object whose lawful circulation depends on the documentary relation required by the pathway applicable to its operator.

Chapter 6: The Limits of Legibility

Chapter 5 described what the apparatus does. This chapter reverses that finding, namely that if the regulation can only regulate what its documentary forms express, then what falls outside its expression is also outside its regulation not through deficient implementation but through the design itself. The chapter identifies four types of limits, each of which presents different issues for regulation and adjudication. Definitional Limits emerge when land or products fall outside their definition. Representational limits arise where a relation is real and relevant yet cannot be expressed through the scheme's plot-level documentary units. Legal design cannot establish causal-system limits, such as leakage and displacement; these limits may not be incorporated at all and so are inferences subject to empirical test. Distributional consequences are when actors cannot generate the necessary records due to inequity. This chapter advocates for the first two options while keeping the remaining two separate and distinct from this argument.

As stated in 6.1, this chapter makes an analytical claim; 6.2 shows that there are representational limits; 6.3 shows that there are definitional limits; 6.4 shows that both of them are structural; and 6.5 concludes with a short normative assessment.

6.1 From Achievement to Limit

The question is not whether the EUDR will work – compliance rates and deforestation outcomes cannot be assessed before the obligations apply – but what this design, functioning perfectly, cannot govern directly. The forms recognised in the Article 2 definitions, plot-level geolocation, risk assessments, and due diligence statements make up its legibility system. What fits those forms enters the governed field; the two limits below do not.

6.2 First Exclusion: Landscape-Level and Cumulative Dynamics

The unit of visibility of the apparatus is the plot. Under Article 9, the geolocation of plots from which a commodity has been sourced is required. Verification may involve checking the coordinates against land-cover data as at the cut-off date of 31 December 2020. It is the plot level granularity that makes the system administrable: a set of coordinates can be checked by satellite; a landscape cannot be linked to a shipment.

This is not to say the regulation is blind to the landscape. It registers landscape-scale conditions indirectly, as risk context: Article 10 requires operators to weigh regional deforestation

prevalence, supply-chain complexity and mixing risk, and Article 29 benchmarks whole countries or regions. Three elements must henceforth be kept apart at this juncture: the lack of any independent landscape-level ban; the indirect visibility that the negative consequences of such conditions do possess through the risk architecture; and the practical difficulty of attributing cumulative effects to individual product flows. Only the first is a claim about design. In the ordinary pathway, admissibility is tied to documented product flows from specific plots, while Article 4a provides a simplified route for eligible small operators..

The gap is significant because of the objectives of the regulation. Despite being an instrument to reduce the EU's global deforestation footprint, a design that determines a consignment's admissibility through plot-specific information may comply with the instrument on its own terms while conversion carries on around those plots. Habitat fragmentation refers to the loss of connectivity across a landscape whose individual plots are, at least nominally, intact. It does not have a dedicated documentary form in the scheme and is not a stand-alone trigger for compliance, although it may affect risk context as per Article 10.

Displacement works at the same scale. Namely, commodity-centric instruments tend to displace rather than eliminate conversion pressure to land and products outside their scope (Bastos Lima & Persson, 2020, pp. 4–8). Clearances below the thresholds of satellite detection are a different and technical limit, which better apparatus could narrow; the representational limit at issue here would remain were detection perfect, for the landscape is only legible to the apparatus as risk context for plot-level consignments, never an independent trigger of admissibility consequences.

6.3 Second Exclusion: The Definitional Boundary and the Cerrado

The first exclusion is that of the unit of the apparatus; the second is that of its categories. As defined in Article 2(4), a forest is something that has ten percent crown cover, half a hectare, and five-metre trees, drawing on FAO-derived thresholds. The definition defines what "deforestation" could mean, since Article 2(3) defines deforestation as conversion of forest.

Now, to clarify, it is not because the Cerrado lies outside the regulation: soy is a relevant commodity wherever grown; thus, any operator sourcing soy from the Cerrado will owe the full suite of due diligence, legality and risk-assessment obligations. In addition, forest formations that meet the Article 2(4) thresholds are covered just like other forests. The argument is less sweeping. The large expanse of Cerrado savanna and wooded grassland falling

short of the forest definition can be converted to soy without that conversion counting against the deforestation-free condition, the Regulation's core environmental trigger.

The Amazon Soy Moratorium, the private instrument whose extension Soterroni et al. modelled, was weakened in 2025–26: Brazil's competition authority upheld a preventive measure suspending it with effect from 1 January 2026 (CADE, 2025), and the trader association ABIOVE withdrew from the agreement in January 2026 (Forests & Finance Coalition, 2026). Two qualifications follow. The moratorium was instituted for the Amazon biome; moreover, it was never applied to the Cerrado. Therefore, the weakening of the moratorium removes no existing protection within the Cerrado. Instead, what it removes is the institutional basis for the modelled counterfactual of extending the voluntary instrument to that biome. Furthermore, it demonstrates the fragility of the voluntary form.

In light of that, the modelling is still relevant. Soterroni et al. (2019, pp. 1, 3) estimate that extending the Amazon Soy Moratorium to the Cerrado would prevent the direct conversion of some 3.6 million hectares of native vegetation to soybeans by 2050. They identify the European Union, alongside the Brazilian domestic market and China, as one of the future conversion risk drivers. At 0.45 million hectares, or twelve percent of the total projected risk (p. 4), the EU is behind China's and Brazil's own domestic market. With less than a fifth of the biome's undisturbed native vegetation remaining (p. 6), and more than 4800 endemic plant and vertebrate species at risk, the conservation stakes are similarly high (p. 1).

The definition of forest in the regulation thus excludes from its central trigger a vegetation type that is under intense pressure of expansion due to a commodity covered by the regulation; and by making conversion of forest costly, while conversion of savanna that falls below the forest definition does not itself breach the deforestation-free condition in Article 3(a), the design may even redirect pressure towards the vegetation it does not reach.

Soterroni et al. (2019) had already demonstrated, before the EUDR's adoption, that a Cerrado-inclusive instrument was both conceivable and consequential for avoided conversion. Nevertheless, the definition from the FAO was kept by the legislature. The subsequent fate of that clause serves as compelling proof that the boundary is structural in nature. Article 34 originally required the Commission to present an impact assessment on extending the scope to other wooded land by 30 June 2024, and an assessment covering other natural ecosystems by 30 June 2025; neither was delivered. Regulation (EU) 2025/2650 removed those separate obligations and folded the scope questions into the general review now due by 30 June 2030,

and the simplification review of May 2026 concluded that the core text should not be reopened (European Commission, 2026e).

The record does not show that the legislature considered extension to other wooded land and expressly rejected it; the assessments were not produced, and the amending regulation refers to the inability to obtain evidence before implementation as the reason for the deferral. What it demonstrates is that the design already contains the boundary which will actually apply, and that the first scheduled opportunity for reconsideration falls four years after the obligations are scheduled to become applicable.

There is a second way in which the Commission-adopted revision of Annex I, which is still pending scrutiny, is relevant here: the same definitional adjustability characterises the apparatus's boundary-drawing as a continuous political act, since products as well as the land uses behind them may be moved in and out of the governed field by delegated act. Consequently, what is excluded is not fixed. At any one moment, however, some exclusion remains, and it operates by definition rather than by failure.

6.4 Why These Exclusions Are Structural

The two exclusions stem from a common source: the EUDR regulates through isolated documentary attribution, i.e., for a specific shipment, from specific plots, carried through a statement of a specific operator. This is what makes the design workable and scalable. This same feature sets the limit: what cannot be attributed to an individual documentary unit cannot independently determine admissibility within this architecture (J. C. Scott, 1998, pp. 309–311).

This is why an improved or stronger implementation is not the solution. A more rigid and stricter enforcement imposes a more rigorous verification of documents; it does not set out to create documents for what the scheme cannot express. Just as a technical limit, like satellite resolution, will narrow with better instruments, and jurisdictional limits, like diversion to non-EU markets, narrow with wider adoption, so these exclusions are different. Similarly, a definitional boundary and a documentary unit will last as long as the design does. Expanding the definition of forest will shift the boundary, not remove it. The significance of the matter is not that every definition has an outside, which is a truism, but the contingent fact established in Section 6.3. This boundary places important ecologically non-forest vegetation beyond the deforestation trigger in a biome already under commodity-driven conversion pressure with documented evidence.

The distributional finding above belongs to the same structure as the documentary form that excludes certain landscapes; it also burdens precisely those least able to generate the required records (Ponte & Gibbon, 2005, pp. 9–12; Zhunusova et al., 2022). Legibility is selective both in what it sees and who it empowers to be seen.

It is a distributional consequence of the legibility form rather than an additional exclusion of the first two kinds; before it is a cost problem, it is a legibility problem. The requirement for geolocation presupposes a certain type of land: individuated, boundable, mappable as a polygon, and attributed to producers. In situations where tenure is typically informal or collective, it becomes difficult to translate production activities into the discretely identifiable, boundable and geolocatable plots that the documentary system assumes.

According to Scott's argument, states underwent cadastral simplification in order to address exactly this problem: surveys standardised land for taxation and also remade tenure in the administration's image (Scott, 1998, pp. 11–22). The EUDR's geolocation requirement performs a market-mediated version of the same operation. The Regulation does not sanction products whose production is more difficult to express in this way; the drawback is rather a growing dependence on intermediaries and, at the limit, falling outside the field of admissible suppliers (Zhunusova et al., 2022) — a quieter process of exclusion, whose extent the present method cannot establish.

One counterargument should be noted. A defender would respond that administrability is not a shortcoming but the objective: a tool regulating landscapes, aggregate demand and informal tenure directly would be unenforceable, and the experience with voluntary initiatives discussed in Chapter 2 shows that ambition without administrability can produce commitments without consequences. Accepting the premise, the reply has force: the exclusions can be understood as trade-offs of the administrable design chosen. The weak/strong distinction does not imply that the relevant trade-offs ought not to have been made, but rather that they should be labelled, particularly where the limits fall on the biomes and producers least able to contest them.

6.5 Normative Assessment: Weak Ecological Modernisation

A short normative assessment completes the answer. Ecological modernisation names environmental governance that works through existing market and administrative institutions rather than against them. Christoff (1996, pp. 490–495) distinguishes a weak form, which

achieves real governance while leaving the structures that generate harm in place, from a strong form that engages those structures.

Christoff's contrast is multi-dimensional, and three of its dimensions can be applied here. On the economistic–ecological axis the EUDR is economistically bounded: it governs trade in commodities, not demand for them. On the technocratic–deliberative axis it is technocratically implemented, through operator self-assessment and a central information system, rather than through participation by those it burdens. On the national–international axis it is genuinely internationalising. The profile is therefore mixed: comparatively strong on internationalisation and institutional innovation, closer to the weak pole on the economistic and technocratic axes. The balance still justifies the weak characterisation, because it is the economistic and deliberative axes that bear on whether the structures generating the harm are engaged, and on both the regulation leaves them intact.

This is offered as an interpretive implication of the preceding analysis rather than a second finding. The regulation makes global commodity trade accountable to documented production conditions, which is a real innovation achieved at scale, while leaving untouched those drivers that operate above its documentary unit: aggregate demand, conversion outside the forest definition, and the landscape dynamics traced earlier. So read, it converges with Verhaeghe and Ramcilovic-Suominen's (2024) conclusion, reached through a different framework, that the EUDR transforms how deforestation is known while economically reinforcing the trade system it regulates.

Chapter 7: Conclusion

7.1 The Answer to the Research Question

The thesis examined whether documented production history, due to its importance in the legislation, might be consequential in the sense of constituting commodities as objects of governance. The answer, compiled with references to Chapters 5 and 6, can be said succinctly.

There are two answers to be distinguished, and they differ in evidentiary status. The first is demonstrated from the provisions and is not in dispute: documented production history is an independently necessary and administratively operative condition of lawful placement, established through the five layers traced in Chapter 5. The second is the reading defended here against a rival it has not eliminated — that this is best described as constituting the commodity's legal-administrative status rather than only as imposing differentiated documentary duties on operators and product flows. According to that interpretation, the absence of the requisite record does not merely establish that some norm has been breached; it is this very absence which prevents goods from attaining the status of a market-admissible object. The sense of constitution is administrative and jurisdiction-specific: it concerns a legal-administrative status and the conditions for holding it, while leaving the physical object and its customs classification untouched. It is also graded, since the applicable documentary pathway varies with the actor.

The provisions of sovereign law are not displaced: Article 3 remains a prohibition, but its operational reach comes through the documentary apparatus.

The same design determines the limits. Governing via individual documentary attribution, it cannot govern directly what no plot-level document carries: landscape-scale dynamics, which enter only as risk context, and the conversion of savanna vegetation – most importantly in the Cerrado – that the forest definition leaves outside the deforestation trigger. Neither limit can be closed by enforcement alone, since both follow from the regulation's unit of visibility and its definitional choices. In this way, the design exhibits the characteristics of weak ecological modernisation in Christoff's sense, whereby real governance is achieved through existing trade structures, while the structural drivers of conversion are left outside the frame.

7.2 Evaluation of the Thesis

Alongside these findings, three limitations should be weighed and a fourth is the position of analysis. A thesis asserting that EUDR sees only what its categories allow must concede the

possibility of turning the same question back on it: this is an EU-based analysis, in English, from EU documents, assessing EU categories for a Brazilian biome, with producer country perspectives present through the reviewed source and not in their own right. J. C. Scott's argument is about who is doing the seeing. There are three ethical implications. The regulation imposes documentary burdens on producers not involved in the design process. It imposes conditions on access to the EU market based on production behaviour occurring in other states without those states participating in rule-making. Moreover, such measures may lead to transition costs disproportionately borne by the most vulnerable. Each of these bears on the regulation's legitimacy, whatever its environmental merits.

The interpretive design indicates a mechanism in the text but cannot demonstrate how that mechanism will work in practice. Implementation after 30 December 2026 may complicate matters. The broader claim, that documentary admissibility constitutes an emerging regulatory form of the EU, remains a supported hypothesis, not a finding, through the single-case design.

The regulatory arrangement's definition and representation limits are design features rather than enforcement failures; the regulation only protects what its categories can see, which today excludes much Cerrado non-forest native vegetation. The effects on distribution are less certain; research points to risks for smallholders and actors who have low levels of documentary capacity, but the extent of the risk under the revised graduated regime is unknown.

What the thesis establishes is that these definitional and representational limits arise from the regulatory design rather than from implementation failure.

7.3 Future Research

Comparative studies could test whether comparable documentary-admissibility mechanisms also operate or are present in other instruments, in particular the Battery Regulation's Digital Product Passport (Regulation (EU) 2023/1542), as well as the Carbon Border Adjustment Mechanism and the forthcoming Ecodesign product passports. Once the regulation is fully applicable, empirical research can investigate what this thesis could not: whether operators produce genuine supply-chain knowledge or only formal paperwork, how authorities verify statements, and how smallholders fare under the graduated regime. The definitional boundary is itself a live political object — a delegated act revising the product scope was adopted in July

2026 and awaits scrutiny — and research tracking such revisions would show in real time the making of the governed field analysed here.

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